

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8a-xh5d-3wi7
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001

Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-4424

Comment on FR Doc # 2025-02305

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General Comment

I am absolutely opposed to the idea of allowing AI developers to have unlimited access to the use of copyrighted materials in the training of their models.

The Fair Use doctrine allows for the use of copyrighted materials in other works that are transformative, to criticise or comment, or advance the progress of the arts by the additional of something new to the copyrighted work. AI training achieves none of these goals. Scraping existing works to train an automated system is likely to have the exact opposite effects the Fair Use doctrine was instituted to obtain. AI does not create, it merely copies and remixes. This is not the same as the use of reference and practice to create to new works. By its nature it cannot comment or criticize. It can only regurgitate others opinions.

Increase of AI tools is likely to make it extraordinarily difficult for artists and writers who rely on commercial commissions to maintain a livelihood. The work of an artist is their property. AI proposes to create tools to profit commercially from replacing the work of artists and writers. We should not be allowing the theft of the property of both our own citizens and writers worldwide in order to fuel profits to a corporation. It is the responsibility of government to protect the rights of individual citizens.